

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

----- X
MICHAEL SKOLNICK,

Plaintiff,

-against-

THE CITY OF NEW YORK,
MATTHEW REICH, JOSEPH RYAN, PHILIP
VACCARINO, NIKOLAOS STEFOPOULOS,
MICHAEL FRIEDMAN and ARTHUR TRUSCELLI,

Defendants.

----- X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 3, 2017

SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

Plaintiff designates
Richmond County as the
place of trial

Basis of venue is
county of occurrence

SUMMONS

To:

-THE CITY OF NEW YORK, c/o NYC Corporation Counsel, 100 Church Street, New York, NY 10007

-MATTHEW REICH, c/o NYPD 123rd Pct., 116 Main Street, Tottenville, NY 10307

-JOSEPH RYAN, c/o Narcotics Borough Staten Island, c/o NYPD 121st Pct., 970 Richmond Ave, Staten Island, NY 10314

-PHILIP VACCARINO, c/o Narcotics Borough Staten Island, c/o NYPD 121st Pct., 970 Richmond Ave, Staten Island, NY 10314

-NIKOLAOS STEFOPOULOS, c/o NYPD 123rd Pct., 116 Main Street, Tottenville, NY 10307

-MICHAEL FRIEDMAN, c/o Narcotics Borough Staten Island, c/o NYPD 121st Pct., 970 Richmond Ave, Staten Island, NY 10314

-ARTHUR TRUSCELLI, c/o Narcotics Borough Staten Island, c/o NYPD 121st Pct., 970 Richmond Ave, Staten Island, NY 10314

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
MICHAEL SKOLNICK,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
MATTHEW REICH, JOSEPH RYAN, PHILIP
VACCARINO, NIKOLAOS STEFOPOULOS,
MICHAEL FRIEDMAN and ARTHUR TRUSCELLI,

Defendants.

-----X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Richmond, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).
4. That at all times herein mentioned, defendant Matthew Reich (hereinafter “Reich”) was and is an officer employed by the NYPD.
5. That at all times herein mentioned, Reich was acting within the course and scope of his employment with the NYPD.

6. That at all times herein mentioned, Reich was acting under color of state law.

7. That at all times herein mentioned, defendant Joseph Ryan (hereinafter "Ryan") was and is an officer employed by the NYPD.

8. That at all times herein mentioned, Ryan was acting within the course and scope of his employment with the NYPD.

9. That at all times herein mentioned, Ryan was acting under color of state law.

10. That at all times herein mentioned, defendant Philip Vaccarino (hereinafter "Vaccarino") was and is an officer employed by the NYPD.

11. That at all times herein mentioned, Vaccarino was acting within the course and scope of his employment with the NYPD.

12. That at all times herein mentioned, Vaccarino was acting under color of state law.

13. That at all times herein mentioned, defendant Nikolaos Stefopoulos (hereinafter "Stefopoulos") was and is an officer employed by the NYPD.

14. That at all times herein mentioned, Stefopoulos was acting within the course and scope of his employment with the NYPD.

15. That at all times herein mentioned, Stefopoulos was acting under color of state law.

16. That at all times herein mentioned, defendant Michael Friedman (hereinafter "Friedman") was and is an officer employed by the NYPD.

17. That at all times herein mentioned, Friedman was acting within the course and scope of his employment with the NYPD.

18. That at all times herein mentioned, Friedman was acting under color of state

law.

19. That at all times herein mentioned, defendant Arthur Truscelli (hereinafter "Truscelli") was and is an officer employed by the NYPD.

20. That at all times herein mentioned, Truscelli was acting within the course and scope of his employment with the NYPD.

21. That at all times herein mentioned, Truscelli was acting under color of state law.

THE FACTS

The September 23, 2014 Incident

22. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

23. That on or about September 23, 2014, at or around the intersection of Willowbrook Avenue and Forest Avenue, Staten Island, NY, Reich, Ryan, and Vaccarino, without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed a crime, criminal offense or violation, and without otherwise being justified, forcibly stopped plaintiff's motor vehicle and then directed plaintiff to exit his motor vehicle.

24. That after directing plaintiff to exit his vehicle, Reich, Ryan and Vaccarino forcibly detained plaintiff outside his vehicle and, without plaintiff's consent and without justification, searched plaintiff's person.

25. That during and after their search of his person, Reich, Ryan and Vaccarino, without justification, verbally and physically threatened plaintiff and placed plaintiff in imminent fear of bodily harm.

26. That after searching plaintiff's person and failing to find any contraband,

Reich, Ryan and Vaccarino let plaintiff leave without issuing him any summons or other accusatory instrument.

27. That Reich, Ryan and Vaccarino each observed the unlawful and unconstitutional actions of his fellow officers, had an opportunity to intervene to prevent and/or stop those actions, and deliberately failed to do so.

28. That the aforesaid actions of Reich, Ryan, and Vaccarino were undertaken collectively and in concert with one another.

29. That the aforesaid actions of Reich, Ryan, and Vaccarino were intentional and malicious in nature.

30. That prior to September 23, 2014, Reich, Ryan, and Vaccarino had been the subject of numerous citizen complaints and lawsuits alleging false and improper stops and other violations of constitutional rights.

31. That by virtue of these prior complaints and lawsuits, the City of New York knew that Reich, Ryan, and Vaccarino were unfit to perform their duties as police officers.

32. That despite its knowledge that Reich, Ryan, and Vaccarino were unfit to perform their duties as police officers, the City deliberately failed to take sufficient remedial measures, failed properly to reprimand, supervise and/or train these officers, and allowed these officers to remain in the employ of the NYPD.

33. That the actions of these officers on September 23, 2014 were a direct result of the City's deliberate indifference to a pattern of unlawful and unconstitutional conduct by Reich, Ryan, and Vaccarino.

34. That as a result of the foregoing, plaintiff was deprived of liberty and endured and continues to endure physical and emotional pain and suffering and loss of enjoyment of life.

The December 19, 2014 Incident

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That on or about October 14, 2014, plaintiff filed a complaint with the Civilian Complaint Review Board about the September 23, 2014 incident with the NYPD officers.

37. That on or about December 19, 2014, at or around 178 Grimsby Street, Staten Island, NY, plaintiff was standing outside his vehicle when he was approached by other NYPD officers, including Stefopoulos, Friedman, and Truscelli.

38. After approaching plaintiff, Stefopoulos, Friedman, and Truscelli, without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed a crime, criminal offense or violation, and without otherwise being justified, forcibly detained plaintiff and searched plaintiff and his motor vehicle without plaintiff's permission or consent.

39. That after conducting this unlawful search of plaintiff, Stefopoulos, Friedman, and Truscelli forcibly placed plaintiff in handcuffs and imprisoned him against his will at various locations, including a police precinct and Central Booking.

40. That on or about December 20, 2014, Stefopoulos then signed an accusatory instrument charging plaintiff with several counts of Criminal Possession of a Controlled Substance.

41. That Stefopoulos did not have probable cause to charge plaintiff with these crimes, and he knew that he did not have probable cause to charge plaintiff with these crimes.

42. That as a result of the prosecution that was initiated by Stefopoulos, plaintiff was required to appear in court in defense of the criminal charges and otherwise suffered a deprivation of his liberty.

43. That on or about June 24, 2015, all criminal charges against plaintiff were

dismissed and the criminal proceeding terminated favorably to plaintiff.

44. That the aforesaid actions of Stefopoulos, Friedman, and Truscelli were undertaken collectively and in concert with one another.

45. That the aforesaid actions of Stefopoulos, Friedman, and Truscelli were intentional and malicious in nature.

46. That the aforesaid actions of Stefopoulos, Friedman, and Truscelli were undertaken, in part, in retaliation for plaintiff's having filed a complaint with the Civilian Complaint Review Board against officers from the same command, and for plaintiff's exercise of his First Amendment right of freedom of speech and his First Amendment right to petition the government for a redress of grievances.

47. That prior to December 19, 2014, Friedman had been the subject of numerous citizen complaints and lawsuits alleging false and improper stops and arrests and other violations of constitutional rights.

48. That by virtue of these prior complaints and lawsuits, the City of New York knew that Friedman was unfit to perform his duties as a police officer.

49. That despite its knowledge that Friedman was unfit to perform his duties as a police officer, the City deliberately failed to take sufficient remedial measures, failed properly to reprimand, supervise and/or train Friedman, and allowed Friedman to remain in the employ of the NYPD.

50. That the actions of these officers on December 19, 2014 and thereafter were a direct result of the City's deliberate indifference to a pattern of unlawful and unconstitutional conduct by Friedman.

51. That as a result of the foregoing, plaintiff was deprived of his liberty, endured

and continues to endure physical and emotional pain and suffering and loss of enjoyment of life, and incurred legal expenses and other economic loss.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST REICH, RYAN and VACCARINO
ARISING OUT OF THE SEPTEMBER 23, 2014 INCIDENT
(Fourth Amendment Violations: 42 U.S.C. § 1983)

52. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

53. That the actions of these defendants in forcibly stopping and searching plaintiff without his consent and without justification constituted illegal and unreasonable searches and seizures of plaintiff, in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST REICH, RYAN and VACCARINO
ARISING OUT OF THE SEPTEMBER 23, 2014 INCIDENT
(Fourteenth Amendment Violations: 42 U.S.C. § 1983)

54. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

55. That the aforementioned actions of these defendants constituted a violation of plaintiff's substantive due process rights, guaranteed by the Fourteenth Amendment to the U.S. Constitution, by threatening plaintiff and violating plaintiff's bodily integrity for no legitimate reason, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST REICH, RYAN and VACCARINO
ARISING OUT OF THE SEPTEMBER 23, 2014 INCIDENT
(Failure to Intervene)

56. Plaintiff repeats and realleges each and every allegation set forth above as

though fully set forth at length herein.

57. That these defendants' failure to intervene to stop or prevent the unlawful and unconstitutional actions of their fellow officers entitles plaintiff to recover damages from these defendants pursuant to 42 U.S.C. § 1983.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
ARISING OUT OF THE SEPTEMBER 23, 2014 INCIDENT
(“Monell” Claim)

58. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

59. That the aforesaid incident and resulting damage to plaintiff was due a deliberate indifference by the City to a pattern of unconstitutional conduct by Reich, Ryan, and Vaccarino, and entitles plaintiff to recover damages from the City under 42 U.S.C. § 1983.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST STEFOPOULOS, FRIEDMAN and
TRUSCELLI ARISING OUT OF THE DECEMBER 19, 2014 INCIDENT
(Fourth Amendment Violations: 42 U.S.C. § 1983)

60. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

61. That the actions of these defendants in forcibly stopping plaintiff's motor vehicle and searching plaintiff and his motor vehicle without plaintiff's consent, and in forcibly handcuffing, detaining, arresting, and imprisoning plaintiff without probable cause, constituted illegal and unreasonable searches and seizures of plaintiff, in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

AS AND FOR A SIXTH CAUSE OF ACTION AGAINST STEFOPOULOS ARISING OUT OF
THE DECEMBER 19, 2014 INCIDENT

(Fourth Amendment Violations: 42 U.S.C. § 1983)

62. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

63. That the actions of these defendants in maliciously prosecuting plaintiff constituted an illegal and unreasonable seizure of plaintiff, in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST STEFOPOULOS, FRIEDMAN
and TRUSCELLI ARISING OUT OF THE DECEMBER 19, 2014 INCIDENT

(First Amendment Violation: 42 U.S.C. § 1983)

64. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

65. That the actions of these defendants in retaliating against plaintiff for his exercise of his First Amendment right of freedom of speech and his First Amendment right to petition the government for a redress of grievances, entitle plaintiff to recover damages under 42 U.S.C. § 1983.

AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST STEFOPOULOS, FRIEDMAN
and TRUSCELLI ARISING OUT OF THE DECEMBER 19, 2014 INCIDENT

(Failure to Intervene)

66. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

67. That these defendants' failure to intervene to stop or prevent the unlawful and unconstitutional actions of their fellow officers entitles plaintiff to recover damages from these

defendants pursuant to 42 U.S.C. § 1983.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
ARISING OUT OF THE DECEMBER 19, 2014 INCIDENT
("Monell" Claim)

68. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

69. That the aforesaid incident and resulting damage to plaintiff was due a deliberate indifference by the City to a pattern of unconstitutional conduct by Friedman, and entitles plaintiff to recover damages under 42 U.S.C. § 1983.

70. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendant Reich, Ryan, Vaccarino, Stefopoulos, Friedman, Truscelli, and Capuano, and attorney's fees against all defendants pursuant to 42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
January 3, 2017

Yours, etc.
SIVIN & MILLER, LLP

By _____

Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

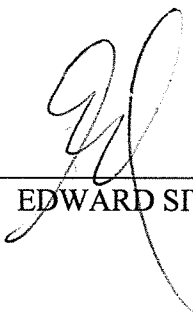
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
January 3, 2017



EDWARD SIVIN

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Year 2017

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

MICHAEL SKOLNICK,

Plaintiff,

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THE CITY OF NEW YORK, et. al.,

Defendants.

VERIFIED COMPLAINT

SIVIN & MILLER, LLP

Attorneys for Plaintiff

20 Vesey St., Suite 1400

New York, NY 10007

(212) 349-0300

FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
January 3, 2017